

CHAPTER 44

Assembly Joint Resolution No. 4—Relative to requesting Congress to authorize further appropriations for air pollution control.

[Filed with Secretary of State, February 9, 1959.]

WHEREAS, The entire Nation has been benefited during the operation of the federal air pollution control program since its inception in 1955; and

WHEREAS, Current authorization for federal appropriations concerning research and investigation of the many problems relating to air pollution control extends only to June 30, 1960; and

WHEREAS, The Country will suffer a great loss in matters relating to our increasing national problems of air pollution control if this program is not extended; now, therefore, be it

Resolved by the Assembly and Senate of the State of California, jointly, That the Congress of the United States is respectfully memorialized to enact necessary legislation to authorize further appropriations for air pollution control; and be it further

Resolved, That the Department of Health, Education, and Welfare fully utilize all appropriations for air pollution control to achieve the goal of a full, comprehensive, and effective national program in air pollution research; and be it further

Resolved, That the Chief Clerk of the Assembly is directed to transmit copies of this resolution to each Senator and Representative from California in the Congress of the United States.

CHAPTER 45

Assembly Joint Resolution No. 5—Relative to requesting Congress to enact legislation amending federal air pollution control law.

[Filed with Secretary of State, February 9, 1959]

WHEREAS, The Federal Water Pollution Control Act, as amended by the Water Pollution Control Act Amendments of 1956, provides a comprehensive basis and system for the research, investigation, and assistance to states in problems relating to water pollution control; and

WHEREAS, Progress is being made by some states in the analysis of, and consideration of possible solutions to, problems relating to air pollution control, but more effective legislation is necessary to properly combat this ever-increasing problem endangering our public health and welfare; and

WHEREAS, There is a growing awareness by the public of the significance of the national problem concerning the control of air pollution; now, therefore, be it

Resolved by the Assembly and Senate of the State of California, jointly, That the Congress of the United States is respectfully memorialized to enact necessary legislation to improve the federal law relating to air pollution control (69 Stat. 322) so that the extensive provisions of the Federal Water Pollution Control Act, as amended, will also relate to air pollution control; and be it further

Resolved, That the Chief Clerk of the Assembly is directed to transmit copies of this resolution to each Senator and Representative from California in the Congress of the United States.

CHAPTER 46

Assembly Joint Resolution No. 6—Relative to the National Conference on Air Pollution.

[Filed with Secretary of State, February 9, 1959]

WHEREAS, On November 18, 19, and 20, 1958, the Surgeon General of the Department of Health, Education, and Welfare conducted a national conference on air pollution in Washington, D. C.; and

WHEREAS, This conference was outstanding and tremendously effective in that it allowed citizens from all parts of our Nation to gather, discuss and interchange ideas in the many problems relating to air pollution; and

WHEREAS, This type of conference is so beneficial in all of its aspects that it should be conducted at regular times in the future; now, therefore, be it

Resolved by the Assembly and Senate of the State of California, jointly, That the Members of the Legislature of the State of California hereby commend the Surgeon General of the Department of Health, Education, and Welfare on the fine manner in which the National Conference on Air Pollution was conducted and urge the Surgeon General to continue holding such conferences at regular times in the future; and be it further

Resolved, That the Chief Clerk of the Assembly is directed to transmit copies of this resolution to the President of the United States, to the Secretary of Health, Education, and Welfare, and to the Surgeon General of the Department of Health, Education, and Welfare.

CHAPTER 47

Assembly Concurrent Resolution No. 28—Relative to passing of Francis J. Ahern.

[Filed with Secretary of State, February 9, 1959.]

WHEREAS, It is with the deepest regret that the Members of the Legislature do hereby mark the sudden passing of the City of San Francisco's dedicated, beloved and respected Police Chief, Francis J. Ahern; and

WHEREAS, Francis J. Ahern left an exemplary record of accomplishment and tireless devotion to duty recognized by all of those around him; and

WHEREAS, He was a native of the City of San Francisco, born south of Market Street 58 years ago, entering its police department in 1929; and

WHEREAS, Francis J. Ahern's outstanding professional and personal qualities resulted in his rise through the ranks of the police department of the City of San Francisco to chief; and

WHEREAS, His devotion to public service was characterized by unending and tireless efforts to make secure the lives and property of the citizens of San Francisco for whom he would frequently unselfishly dedicate his energies to the extent of jeopardizing his own personal health; and

WHEREAS, Under the brief, but unique and inspiring leadership of Francis J. Ahern, San Francisco's police department gained a national reputation for its progress to the point of being one of our Country's most efficient and forward-looking law enforcement agencies; and

WHEREAS, His passing leaves a void in the leadership of his community most difficult to fill and his accomplishments will act as a memorial by which his name will be perpetuated for years to come; now, therefore, be it

Resolved by the Assembly of the State of California, the Senate thereof concurring, That the Members of the Legislature of the State of California do hereby pay tribute to the memory of one of America's most outstanding law enforcement officers, Francis J. Ahern; and be it further

Resolved, That the Chief Clerk of the Assembly prepare and transmit suitably prepared copies of this resolution to Chief Ahern's beloved wife, Mrs. Francis J. Ahern, and his daughter, Bernadette Ahern, and son, Francis J. Ahern, Jr.

CHAPTER 48*Assembly Concurrent Resolution No. 29—Relative to the death of Dr. Edward L. Hardy.*

[Filed with Secretary of State, February 9, 1959.]

WHEREAS, The Legislature of the State of California has learned with deep regret of the passing of Dr. Edward L.

Hardy, distinguished educator and retired college president; and

WHEREAS, Dr. Hardy, whose reputation in the field of education has been memorialized by a San Diego school bearing his name, was President of San Diego State College from 1910 to 1935; and

WHEREAS, He was eminently qualified to hold the position of college president, receiving a bachelor of literature degree from the University of Wisconsin in 1893 where he was selected for membership in Beta Theta Pi and Phi Beta Kappa fraternities, a master of arts degree from the University of Chicago in 1922, and an honorary doctor of laws degree from La Verne College in 1928; and

WHEREAS, In addition to his academic achievements, Dr. Hardy served on the State and San Diego Boards of Education, was appointed associate head master of the Los Angeles Military Academy upon his arrival in California in 1899, and served as principal of Riverside High School, Cook County, Illinois, from 1901 to 1906, and principal of San Diego High School from 1906 to 1910; now, therefore, be it

Resolved by the Assembly of the State of California, the Senate thereof concurring, That the Members of the California Legislature profoundly regret the passing of Dr. Edward L. Hardy, President Emeritus of San Diego State College, and an eminent state educator, and extend their deepest sympathies to the bereaved members of his family; and be it further

Resolved, That the Chief Clerk of the Assembly be directed to transmit suitably prepared copies of this resolution to Dr. Hardy's widow, Mary Hardy, and his four daughters, Mrs. Anne Davis, Mrs. Mary Hobbs of Washington, D. C., Mrs. Millison Cutler Doble of Sausalito, and Mrs. Esther Pomeroy Winterer of Short Hills, New Jersey.

CHAPTER 49

Assembly Concurrent Resolution No. 31—Relative to the passing of Pope Pius XII.

[Filed with Secretary of State, February 9, 1959]

WHEREAS, In the passing of Pope Pius XII, the world has lost a leader without peer in his devotion to world peace and the elevation of the human spirit; and

WHEREAS, Throughout his entire pontificate, Pius XII, the Pope of Peace, waged an unceasing battle against those forces that would enslave mankind and destroy the basic freedoms which are the birthright of all men; and

WHEREAS, Pius XII, perhaps more than any one single world leader, succeeded in stemming the tide of atheistic communism in the West, thereby enabling the freedom-loving

nations to gird themselves to protect the principles for which they stand; and

WHEREAS, The American people in particular will miss Pius XII, for he consistently demonstrated his esteem for the United States and his affection for the American people both in his utterances and in the warm hospitality extended by him to millions of American servicemen and tourists during their visits to the Vatican; and

WHEREAS, The world mourns, as it should, the passing of this saintly man, great statesman, and spiritual leader, who will be remembered always for his contributions to mankind; now, therefore, be it

Resolved by the Assembly of the State of California, the Senate thereof concurring, That the Members of this Legislature do hereby express their grief at the passing of Pope Pius XII and extend their deepest sympathy to the Catholic hierarchy and to Catholic people everywhere; and be it further

Resolved, That the Chief Clerk of the Assembly is directed to transmit a suitably prepared copy of this resolution to the Secretariat of State, Vatican City, Rome, Italy.

CHAPTER 50

Assembly Concurrent Resolution No. 35—Relative to the passing of Edgar A. Luce.

[Filed with Secretary of State, February 9, 1959.]

WHEREAS, The Members of the Legislature were greatly grieved to learn of the passing of one of their former colleagues, Edgar A. Luce, on August 27, 1958; and

WHEREAS, Edgar A. Luce was born in the City of San Diego in the year of 1881, attended Stanford University, and entered upon the practice of law in San Diego in 1905; and

WHEREAS, Edgar A. Luce led an outstanding, illustrious and active life, serving as a Member of the California Senate, as an officer in the Army Air Force during World War I, as a judge of the superior court in San Diego County, and as a member of the Board of Governors of the State Bar of California; and

WHEREAS, Judge Luce was an able practitioner of his profession, and was particularly devoted to the role of advocate, often appearing in court until shortly before his death; and

WHEREAS, Judge Luce was an athlete in college and continued an enthusiastic interest in sports all his life, serving as a director of the San Diego Padres Baseball Club; now, therefore, be it

Resolved by the Assembly of the State of California, the Senate thereof concurring, That the Members of the Legislature of the State of California do hereby wish to extend their

deepest sympathies to the widow of Edgar A. Luce, Mrs. Carma Luce, to his two sons, Mr. Gordon Luce, and Mr. Edgar Luce, Jr., and to his daughter, Mrs. Sylvia Heitzmann; and be it further

Resolved, That the Chief Clerk of the Assembly be, and he hereby is, directed to transmit suitably prepared copies of this resolution to his widow and to each of his children.

CHAPTER 51

Assembly Concurrent Resolution No. 40—Relative to the creation of the Joint Legislative Committee on Legislative Reference Library.

[Filed with Secretary of State, February 9, 1959]

Resolved by the Assembly of the State of California, the Senate thereof concurring, As follows:

1. The Joint Legislative Committee on Legislative Reference Library is hereby created and authorized and directed to ascertain, study and analyze all facts relating to the maintenance and improvement of a reference library in the Capitol for use of legislators, the cataloguing and indexing of legislative publications, and the furnishing of library assistance to the Legislature, including but not limited to the operation, effect, administration, enforcement and needed revision of any and all laws in any way bearing upon or relating to the subject of this resolution, and to report thereon to the Legislature, including in the reports its recommendations for appropriate legislation.

2. The committee shall consist of three Members of the Senate appointed by the Committee on Rules thereof, and three Members of the Assembly appointed by the Speaker thereof. Vacancies occurring in the membership of the committee shall be filled by the appointing power.

3. The committee is a continuing body and is authorized to act both during and between sessions of the Legislature.

4. The committee and its members shall have and exercise all of the rights, duties and powers conferred upon investigating committees and their members by the provisions of the Joint Rules of the Senate and Assembly as they are adopted and amended from time to time at this session, which provisions are incorporated herein and made applicable to this committee and its members.

5. The committee has the following additional powers and duties:

(a) To select a chairman and a vice chairman from its membership.

(b) To contract with such other agencies, public or private, as it deems necessary for the rendition and affording of such services, facilities, studies and reports to the committee